

20STCV17540 20STCV17540

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 20STCV17540 Hearing Date: September 22, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

22, 2026 TRIAL DATE: Disposed by bench trial

CASE: Irma Gonzalez v. Martini Associates Development, LLC

CASE NO.: 20STCV17540

PLAINTIFF'S

MOTION FOR STATUTORY ATTORNEY'S FEES

MOVING PARTY: Plaintiff

Irma Gonzalez

RESPONDING PARTY: Defendant Frank

Martini

I. BACKGROUND

On May 8, 2020, Plaintiff, Irma Gonzalez commenced this wage and hour suit against her employer, defendant Martini Associates Development LLC d/b/a Los Angeles Adventurer All-Suite Hotel ("Martini Associates"),^[1] alleging various Labor Code violations, and, in relevant part, Private Attorney General Act (PAGA) claims. Plaintiff latter added Frank Martini ("Martini" or "Defendant") as a defendant in this action by

way of doe amendment.

This case

proceeded to a bench trial against Martini. On May 1, 2026, the court found in Plaintiff's favor on six of eight claims and entered judgment in the sum of \$33,494.00.

On July 8,

2026, Plaintiff filed this motion for attorney's fees pursuant to Labor Code sections 218.5(a) and 1194(a).

On September

9, 2026, Defendant filed an opposition.

Plaintiff

filed its reply on September 15, 2026.

II. LEGAL STANDARD

"Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided."¿ (Code Civ. Proc., § 1021.)¿ Attorney's fees are allowable costs under Code of Civil Procedure section 1032 when authorized by contract, statute, or law.¿ (Code Civ. Proc., § 1033.5(a)(10).)¿¿

III. DISCUSSION

A. Judicial Notice

Defendant's

unopposed request for judicial notice is GRANTED.

B. Analysis

Plaintiff seeks an award of attorneys' fees pursuant to statute. (See Lab. Code, §§ 1194(a); 218.5(a).) As the prevailing party, Plaintiff is entitled to a statutory fees award. Plaintiff seeks a fees award of \$135,325.00.[2]¿ The request is based upon Plaintiff's counsel's timesheets reflecting 319 hours billed, counsel's hourly billing rates of \$1,500, \$1,100,

\$750, and \$500, and a 1.5 multiplier. (See Younessi Decl., ¶ 14; Ortiz Decl., ¶ 6; Nakahiro Decl., ¶ 5; Balderas Decl., ¶ 4; Ex. 1.) Defendant lodges several challenges to the fees requested, including the reasonableness of the billings rates and specific entries.

The determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095; Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal.App.4th 1127, 1134.) “The determination of what constitutes a reasonable fee generally ‘begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....” [T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award....” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of “fees customarily charged by that attorney and others in the community for similar work.” (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal.App.4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal.4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 615.)

A trial court has broad discretion in determining the amount of a reasonable attorney’s fee award which will not be overturned absent a “manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence.” (Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1393-94.) The court need not explain its calculation of the amount of attorney’s fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.) “Attorney’s fees need not be apportioned when incurred for representation on an issue common to both a cause of action in which fees are proper and one in which they are not allowed.” (Reynolds Metals Co. v. Alpers (1979) 25 Cal.3d 124, 129–30; see also Abdallah v. United Sav. Bank (1996) 43 Cal.App.4th

1101, 1111 (noting the impracticability and impossibility to separate compensable and noncompensable time units where it was reasonable for a trial court to find various claims were inextricably intertwined).))

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After reviewing the motion and supporting evidence, the court finds fees in the sum of \$80,000.00 is a reasonable award. This amount represents the fees Plaintiff incurred without the addition of any multiplier. The court declines to award any multiplier because this case did not present complex or novel issues.

IV. CONCLUSION

The motion is GRANTED IN PART. Plaintiff is award attorneys' fees in the sum of \$80,000.00.

Plaintiff to give notice, unless waived.

Dated: September 22,
2026

Brock T.
Hammond

Judge of
the Superior Court

[1] Defendant Martini Associates was dismissed from this action on August 21, 2026.

[2] Defendant correctly notes a discrepancy (and several other discrepancies in the motion) between the amount of attorney's fees of \$135,325 requested in the notice of motion and the \$202,987.50 requested in the body of the motion. The court credits only the \$135,325 requested.